

Chapter # 3

Q# How members of the labor force communicate their fairness concerns to employers?

=> There are many ways members of the labor force communicate their fairness concerns to employers:

=> Job applicants evaluate whether a company pays a fair wage

=> whether it offers desirable benefits.

=> whether they corporate culture is appealing.

=> Once hired, employees continue to express their concerns about fairness.

=> If they feel unfairly treated, they "vote with their feet" and seek employment elsewhere.

=> Clearly, treating employees fairly is good for employees.

=> Fairness is also good for business.

=> When employees are treated fairly, they treat customer better.

=> Employees who feel mistreated at work can drive away customers.

=> Fair treatment and legal compliance are complex issues that involve all three members of the HR triad.

- 1) HR professionals
- 2) Managers
- 3) Employees

Fairness:

=> Justice or fairness refers to the idea that an action or decision is morally right, which may be defined according to ethics, religion, equity or law.

=> Organizational justice is defined generally in terms of:

- Distributive justice
- Procedural justice
- Interactional justice

Fair Treatment

o Fair treatment in HR programs or policy that ensures that all employees of an organization are given fair and equal treatment.

Points:

- o Justice and fair treatment helps in avoidance of employee litigation.
- o Enhanced employee commitment, satisfaction and organizational citizenship.

Legal Compliance:

=> Legal compliance is the process by which a company adheres to the complex rules, policies and processes that regulate ^{business} practice in a particular jurisdiction.

=> Generally, compliance in business or in a company means adhering to government laws, health and safety standards, or data and security requirements.

⇒ Legal compliance means complying with legal regulations and legal and regulatory requirements in all areas of the company.

Q# what is the role of HR in ensuring fair treatment and legal compliance

⇒ Fair treatment and legal compliance are complex issues that involve all the members of the HR team.

HR professionals:

⇒ HR professionals, with the assistance of legal experts, share responsibility for enforcing the legal obligations of employers and protecting the legal rights of employees.

⇒ Stay informed about the legal landscape and behave in accordance with it.

⇒ Establish and review policies to ensure fair treatment.

⇒ Encourage the use of social views of partners rather than adopting a narrow legalistic model.

⇒ Stay up-to-date about new developments in the legal landscape. consult with legal experts as needed.

⇒ Develop and help implement policies that support fair and ethical behaviour by everyone in the organization.

⇒ Administer grievance procedures and participate in alternative dispute resolution activities.

⇒ Design, deliver and evaluate diversity training and other diversity and inclusion activities.

⇒ Help keep employees' rights and responsibilities in balance.

⇒ Articulate and oversee organizational compliance with the ADA.

Line managers:

Responsible for:

- Understanding their legal obligations and the rights of employees.

- Stay informed about the legal landscape and behave in accordance with it.

- Establish and review policies to ensure fair treatment of employees in collaboration with HR professionals.

- Learn the steps involved in the grievance procedures and follow them.

- participate in diversity training programs and other diversity and inclusion initiatives.

- Intervene if you observe discriminatory or other illegal or unethical behaviours among subordinates, colleagues or superiors.

- Facilitate the organization's accommodation to the ADA.

Other employees:

- Accept and fulfill responsibilities to behave fairly toward you, colleagues and employer.

- Be informed about the legal landscape and behave in accordance with it.

- Work with HR professionals to establish procedures for dealing fairly with workplace issues.

- Report discriminatory or other illegal behaviours among subordinates, colleagues or superiors to an HR professional.

- participate diversity training and provide feedback on its effectiveness and other diversity and inclusion initiatives.

- Inform managers of any disabilities requiring accommodation.

What fairness means to employees:

The fairness shows that perceptions of fairness reflect at least three features of the situations in which people find themselves:

- ⇒ the actual outcomes
- ⇒ The procedures used in arriving at these outcomes
- ⇒ The interactions the employees have with their managers

Distributive justice:-

⇒ when employees believe that the outcomes they experience are fair in comparison to the outcomes of others, they feel a sense of distributive justice.

⇒ The principle of distributive justice means that employees who do not get the best outcomes may nevertheless feel they are treated fairly.

Procedural justice:

- Procedural justice refers to perceptions about fairness in the process used to determine outcomes.
- When employees attend to procedural justice, employees are more productive, more committed to the organization, more motivated, less likely to be absent, and less likely to quit.

Interactional justice:

Interactional justice reflects employees' feelings about whether managers are sensitive to their situations, give them the information they need, and treat them politely and respectfully.

Interactional justice is how managers behave in their one-on-one meetings and conversations with employees also. It influences perceptions of fairness. When evaluating how fairly they are treated, employees take into account how they personally are treated.

by their managers.

What are reactions to unjust treatment?

Employees respond in a variety of ways. These include:

⇒ Negative changes to their attitudes such as:

- job satisfaction
- Lower commitment
- Less engagement
- Greater distrust of their employees
- Lower motivation

⇒ Negative changes in indicators of employees' physical and mental health.

⇒ Unfairness also leads to psychological well-being, emotional well-being, higher levels of anxiety, perceived stress, emotional exhaustion, anger, burnout, depression and insomnia.

⇒ Outcomes also include negative changes in behaviors such as:

- Lower productivity
- Stealing from the company
- More absenteeism
- Searching for a new job
- Quitting
- Failure to comply with laws regulating pay

⇒ Clearly, the responses to perceived injustice are largely negative for the employees and the organization.

⇒ That is why having fair procedures that lead to fair outcomes is so important.

Q# Describe the components of legal landscape and how they interact.

Components of legal landscape

There are five components of legal landscape:

- Societal factors
- Laws
- Courts
- Agencies
- Company

i) Societal factors:

- values
- current problems
- Ongoing debates

ii) Laws:

Federal laws

- applicable to the entire united states

State laws

- Apply only specific states

Executive orders

- directives are treated from the president that like federal laws.

iii) Courts:

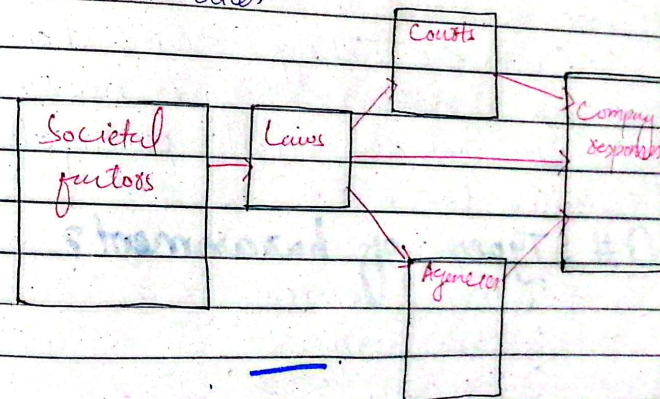
- Interpret laws
- Self precedents
- Settle disputes

iv) Agencies:

- Investigate claims
- issue guidelines
- impose sanctions

v) Company responses:

- Policies
- Practices



Q# What is harassment? (PP-2001)

Harassment

⇒ Harassment is conduct that creates a hostile, intimidating, or offensive work environment, that unreasonably interferes with the individual's work or that adversely affects the individual's employment opportunities. Such offensive conduct may be

⇒ Harassment creates an offensive, hostile, and stressful work environment that prohibits effective performance.

Q# What is constructive discharge?

Constructive discharge

⇒ Harassment causes constructive discharge.

Constructive discharge occurs when working conditions become so unbearable that a reasonable person feels compelled to quit.

Q# : Types of harassment?

- Sexual harassment
- Racial harassment
- Quid Pro Quo sexual harassment

Q# What is sexual pro quo harassment?

Quid Pro Quo sexual harassment

→ it is obtaining favors of a sexual nature in exchange for conditions of employment such as promotions, pay increase etc.

Q#: What is diversity?

• Diversity and inclusion initiatives are policies and practices that an organization adopts voluntarily for the purpose of ensuring that an organization adopts diverse workforce feel they are treated fairly.

Q#: What is disparate treatment

- Disparate is a legal term used to describe illegal discrimination against an individual.
- Disparate treatment is the unequal treatment of persons or groups related to directly on individual characteristic.